



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

November 28, 2022

Memorandum for: Deputy Commissioner, Trials

Re: **Captain Jackson Cheng**
Tax Registry No. 933690
Patrol Borough Queens North
Disciplinary Case No. 2021-23297

The above named member of the service appeared before Assistant Deputy Commissioner Paul M. Gamble on September 14, 2022 and was charged with the following:

DISCIPLINARY CASE NO. 2021-23297

1. Said Captain Jackson Cheng, while assigned to the Detective Borough Brooklyn South Zone 21, while on-duty, and performing "straight time," on or about one hundred forty-two (142) occasions between May 1, 2019 and October 31, 2020, was absent from his assignment without permission or police necessity, and wrongfully failed to submit leave of absence reports (UF-28) for said absences, resulting in said Captain being compensated for about four hundred thirty-two (432) hours and thirty-seven (37) minutes he did not work.

P.G. 203-05, Page 1, Paragraphs 1&2

**PERFORMANCE ON DUTY
GENERAL REGULATIONS**

2. Said Captain Jackson Cheng, while assigned to the Detective Borough Brooklyn South Zone 21, while on-duty, and performing "overtime" on or about fifty-four (54) occasions between May 1, 2019 and October 31, 2020, wrongfully made or caused to be made inaccurate entries in Department records in that said Captain improperly submitted overtime slips which stated that he had worked time periods that he actually had not worked, resulting in said Captain being compensated for one hundred ninety-six (196) hours and thirty-four (34) minutes he had not worked.

P.G. 203-05, Page 1, Paragraph 4

**PERFORMANCE ON DUTY
GENERAL REGULATIONS**

3. Said Captain Jackson Cheng, while assigned to the Detective Borough Brooklyn South Zone 21, while on-duty, on or about forty-two (42) occasions between May 1, 2019 and October 31, 2020, wrongfully was off-post without permission or authority.

P.G. 203-05, Page 1, Paragraphs 1&2

**PERFORMANCE ON DUTY
GENERAL REGULATIONS**

4. Said Captain Jackson Cheng, while assigned to the Detective Borough Brooklyn South Zone 21, while on-duty, on or about one hundred (100) occasions between May 1, 2019 and October 31, 2020, wrongfully made or caused to be made inaccurate or otherwise misleading entries in Department records regarding the time said Captain actually arrived to or left from work.

P.G. 203-05, Page 1, Paragraph 4

**PERFORMANCE ON DUTY
GENERAL REGULATIONS**

5. Said Captain Jackson Cheng, while assigned to the Detective Borough Brooklyn South Zone 21, while on-duty and off-duty, on or about twenty-eight (28) occasions between May 1, 2019 and October 31, 2020, wrongfully used his assigned Department vehicle for personal transportation.

**P.G. 203-06, Pages 1 & 2,
Paragraphs 9 & 16**

**PERFORMANCE ON DUTY
PROHIBITED CONDUCT
GENERAL REGULATIONS**

P.G. 203-10, Page 1, Paragraph 5

**PUBLIC CONTACT –
PROHIBITED CONDUCT
GENERAL REGULATIONS**

6. Said Captain Jackson Cheng, while assigned to the 114th Precinct, while on-duty, on October 13, 2021, did wrongfully and without just cause prevent or impede with an official Department investigation during his official Department interview.

A.G. 304-06, Page 1, Paragraph 1

**PUBLIC CONTACT –
PROHIBITED CONDUCT**

In a Memorandum dated October 4, 2022, Assistant Deputy Commissioner Paul Gamble found Captain Jackson Cheng guilty of all Specifications, after he pled guilty to all Specifications in Disciplinary Case No. 2021-23297. Having read the Memorandum and analyzed the facts of this matter, I approve of the findings and the penalty recommendation.

Having considered the totality of the circumstances and issues concerning the misconduct for which Captain Cheng has been found guilty, separation from the Department will be implemented as follows.

In lieu of dismissal, I direct that an *immediate* post-trial settlement agreement be implemented with Captain Cheng in which he shall forfeit four hundred thirty-two hours and thirty-seven minutes (432:37) from time and leave balances, and repay one hundred ninety-six hours and thirty-four minutes (196:34) in overtime pay as restitution, forfeit thirty (30) suspension days to be served, forfeit any remaining time and leave balances,

be placed on one (1) year dismissal probation, and immediately file for vested interest retirement.

Such vested interest retirement shall also include Captain Cheng's written agreement to not initiate administrative applications or judicial proceedings against the New York City Police Department to seek reinstatement or return to the Department. If Captain Cheng does not agree to the terms of this vested interest retirement agreement as noted, this Office is to be notified without delay. This agreement is to be implemented ***IMMEDIATELY.***

A handwritten signature in black ink, appearing to read 'K. Sewell', is positioned above the printed name of the Police Commissioner.

Keechant L. Sewell
Police Commissioner



POLICE DEPARTMENT

October 4, 2022

-----X
In the Matter of the Charges and Specifications :

- against - :

Captain Jackson Cheng :

Tax Registry No. 933690 :

Patrol Borough Queens North :

Case No.

2021-23297

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Javier Seymore, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Louis C. La Pietra, Esq.
La Pietra & Krieger, PC
30 Glenn Street- Suite 105
White Plains, NY 10603

To:

HONORABLE KEECHANT L. SEWELL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

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A.G. 304-06, Page 1, Paragraph 1

PUBLIC CONTACT
PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on September 14, 2022. Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find Respondent Guilty in accordance with his pleas. I recommend that Respondent be forcibly separated from the Department, along with restitution, time adjustments and whatever additional conditions the Police Commissioner deems appropriate.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent testified that some of his unauthorized absences were motivated by a desire to look after his aged parents during the pandemic. While this rationale does not excuse his misconduct, either in whole or part, it tends to explain one of the reasons for his departure from the norms of behavior expected of Members of Service. Respondent testified further that terminating him from his employment and the resulting forfeiture of his pension would create a financial hardship for his minor child, for whom he shares custody with his former wife.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined (*see* 38 RCNY § 15-07). Information from Respondent's personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on January 20, 2004, has pled guilty to: (1) being absent from his assignment without submitting leave of absence reports on 142 occasions, and acquiring 432 hours and 37 minutes of compensatory time for which he did not work; (2) causing inaccurate entries to be made in Department records on 54 occasions and improperly submitting overtime slips, resulting in his being paid for 196 hours and 34 minutes he had not worked; (3) wrongfully being off-post on 42 occasions; (4) causing inaccurate entries to be made in Department records on approximately 100 occasions, regarding the time of his arrival and departure from work; (5) wrongfully using his Department vehicle as personal transportation; and (6) impeding an investigation during his Department interview.

The Department Advocate has recommended termination.

The presumptive penalty for impeding an investigation is 30 penalty days plus dismissal probation; the aggravated penalty is termination. The presumptive penalty for misuse of time is 15 penalty days and forfeiture of time/leave balances or restitution. The Guidelines note that the number of penalty days may increase based upon the amount of time misused or the severity of the misuse to reimburse the Department for the improper use of time. The penalty may also include Dismissal Probation, or termination.

I find that Respondent's position as a senior executive and his position as a Detective Bureau Zone Commander at the time of the misconduct are aggravating factors. I note that Respondent has a formal disciplinary record.

While the Guidelines permit a finding of a mitigating factor for the presence of any extraordinary circumstances or hardship that may be relevant, I do not make such a finding with respect to his conclusory statement of fact that his minor child will suffer financially if he is terminated. I note, however, that it could be a relevant factor in this case, as it would be in any case where termination is a possible penalty and the Member of Service has a family.

I find two mitigating factors to be present. First, Respondent's acceptance of responsibility under oath was exceptional, contrite, unequivocal, and forthright. Second, Respondent offered to repay the overtime he wrongfully accrued in advance of the Tribunal's penalty recommendation. The Tribunal advised Respondent that any penalty approved by the Police Commissioner would almost certainly require disgorgement of any compensatory time or cash he wrongfully obtained because of his misconduct.¹ Nevertheless, I find Respondent's offer to make restitution was sincere and evidence of his remorse.

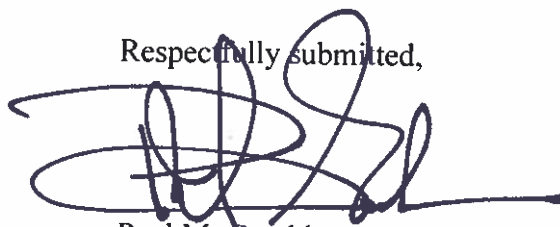
Based on the totality of the record before me, I find that Respondent's misconduct was serious and deliberate. Because of his rank and his leadership position, his commission of this misconduct is particularly corrosive to good order and discipline in this Department. He demonstrated a brazen pattern of being absent from work for 432 hours. Particularly egregious are the 54 separate occasions that Respondent submitted overtime slips for time he did not work, for which he received cash payments. Accordingly, retaining him on the rolls of this Department would be inconsistent with its core values; as such, he must be separated. On the other hand,

¹ Department Exhibit 1 estimates the total value of compensatory time and cash overtime resulting from Respondent's time abuse as \$62,382.83.

Respondent's candor in his acceptance of responsibility and willingness to take steps to make the Department whole may positively affect good order and discipline. These attributes vindicate the vigilance with which Members of Service must guard against violating their oaths of office and provide a vivid example of the real-world consequences of personal misconduct.

Accordingly, I recommend that Respondent forfeit the equivalent of 432 hours and 37 minutes he did not work in penalty days; that he repay 196 hours and 34 minutes of overtime pay he wrongfully received; and that he be forcibly separated from this Department.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Paul M. Gamble', written over a horizontal line.

Paul M. Gamble
Assistant Deputy Commissioner Trials

APPROVED

A handwritten signature in black ink, appearing to read 'Keechant L. Sewell', written over a horizontal line.

NOV 28 2022
KEECHANT L. SEWELL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
CAPTAIN JACKSON CHENG
TAX REGISTRY NO. 933690
DISCIPLINARY CASE NO. 2021-23297

Respondent was appointed to the Department on January 20, 2004. On his most recent documented annual performance evaluations, he received a 4.5 rating of “Extremely Competent/Highly Competent” for 2016, and a 3.5 rating of “Highly Competent/Competent” for 2015. The Tribunal also notes and has considered that Respondent submitted an unsigned annual evaluation where he received a 5, “Well Above Standards” rating for 2019, and an interim evaluation where he received a 4, “Above Standards” rating for a period spanning April 4, to September 11, 2022.

In 2014, Respondent forfeited 50 suspension days for misconduct that was the subject of four separate disciplinary cases. In the first matter, Respondent pled guilty to (i) personally informing an individual that he was the subject of a criminal complaint, (ii) failing to arrest said individual when they had personal contact and (iii) failing to maintain his Activity Log. In the second matter, Respondent pled guilty to being involved in a domestic incident where he (i) engaged in a physical altercation with his wife and (ii) pointed a gun, and made threats against the wife, her mother and her dog. In the third and fourth matters, Respondent pled guilty to violating a temporary restraining order on three separate dates. In connection with those cases, Respondent was placed on Level 2 Discipline Monitoring from October 2012 to April 2014.

For your consideration.

Paul M. Gamble
Assistant Deputy Commissioner Trials